

Richmond Police Department is Not a Proper Party

Finally, Plaintiff asserts all his causes of action against both the City and the Richmond Police Department. (Complaint, ¶¶ 19-38.)

Defendants take the position that Plaintiff has sued a non-existent legal entity because the Richmond Police Department is not a statutorily recognized public entity that is subject to suit and no cause of action can lie against a party who does not have the legal capacity to be sued. (Demurrer at p. 17: 2-3.) Furthermore, Defendants argue that Plaintiff's claims against both the City and the Richmond Police Department are redundant as they rest on identical theories of liability. (Demurrer at p. 17: 3-4.)

Plaintiff's opposition essentially concedes this point stating that he "does not oppose narrowing the caption to reflect the City of Richmond as the proper municipal defendant, with the understanding that all references to the Richmond Police Department are treated as references to the City and its police department as a subdivision." (Opp. at p. 10: 5-12.)

Because the Richmond Police Department is not a proper party, and because the Plaintiff does not materially object to their dismissal, the Court *sua sponte* strikes the Richmond Police Department as a defendant. (Code Civ. Proc, § 435-37 [the trial court is within its authority to bring a motion to strike sua sponte, i.e., "at any time in its discretion, and upon terms it deems proper."]; see also *Lodi v. Lodi* (1985) 173 Cal.App.3d 628, 631 [upholding trial court order striking and dismissing a complaint entirely on the trial court's own motion].)

Conclusion

For the reasons explained above, **the Demurrer is sustained in its entirety with leave to amend and the Richmond Police Department is stricken as a defendant.**

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C24-00152
CASE NAME: DEANDRANAE JONES VS. DAVE & BUSTER'S OF CALIFORNIA, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES**
FILED BY: DAVE & BUSTER'S OF CALIFORNIA, INC.
TENTATIVE RULING

The Court is missing the Declaration of Breana Burgos, which is described in the moving papers and does not seem to be in Odessey. The proof of service reflects it was served on Plaintiff. The court requests a copy to be filed with a courtesy copy emailed to the department.
The hearing will be moved to next Friday, February 20, 2026 at 9:00 a.m.

**Law & Motion
Add On**

15. 9:00 AM CASE NUMBER: C24-02654

CASE NAME: MIU FONG VS. ANGELA LEUNG

***HEARING ON MOTION IN RE: FOR ORDER TO PERMIT SERVICE OF DEFTS ANGELA KIT-HING LEUNG
AND SAMUEL NG BY PUBLICATION**

TENTATIVE RULING

Plaintiffs seek an order to permit service of defendants by publication. The motion is denied.

Plaintiffs declare that the persons to be served have a private mailbox at a commercial mail receiving agency (CMRA).

Section 17528.5(d)(1) of the Business & Professions Code provides:

Every person receiving private mailbox receiving service from a CMRA in this state shall be required to sign an agreement, along with a USPS Form 1583, which **authorizes the CMRA owner or operator to act as agent for service of process** for the mail receiving service customer. **Every CMRA owner or operator shall be required to accept service of process for and on behalf of any of their mail receiving service customers**, and for two years after termination of any mail receiving service customer agreement. Upon receipt of any process for any mailbox service customer, the CMRA owner or operator shall (A) within 48 hours after receipt of any process, place a copy of the documents or a notice that the documents were received into the customer's mailbox or other place where the customer usually receives his or her mail, unless the mail receiving service for the customer was previously terminated, and (B) within five days after receipt, send all documents by first-class mail, to the last known home or personal address of the mail receiving service customer. The CMRA shall obtain a certificate of mailing in connection with the mailing of the documents. Service of process upon the mail receiving service customer shall then be deemed perfected 10 days after the date of mailing.

If the CMRA owner or operator has complied with the foregoing requirements and provides to any party participating in a lawsuit involving a mail receiving service customer a declaration of service by mail, given under penalty of perjury along with a certificate of mailing, the CMRA owner or operator shall have no further liability in connection with acting as agent for service of process for its mail receiving service customer.

Plaintiffs have a method of serving the defendants other than publication and the request for publication is denied.